

ATTORNEY OR PARTY WITHOUT ATTORNEY NAME: FIRM NAME: STREET ADDRESS: CITY: STATE: ZIP CODE: TELEPHONE NO.: FAX NO.: EMAIL ADDRESS: ATTORNEY FOR (name):	FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: MAILING ADDRESS: CITY AND ZIP CODE: BRANCH NAME:	
CHILD'S NAME:	
FINDINGS AND ORDERS AFTER JURISDICTIONAL HEARING (Welf. & Inst. Code, § 356)	CASE NUMBER:

1. This matter came before the court on the
☐ original petition ☐ subsequent petition ☐ supplemental petition ☐ other(*specify*):
 filed on (*date*):

2. Jurisdictional hearing

- | | |
|--------------------------------------|--|
| a. Date: | e. Court reporter (<i>name</i>): |
| b. Department: | f. Bailiff (<i>name</i>): |
| c. Judicial officer (<i>name</i>): | g. Interpreter (<i>name and language</i>): |
| d. Court clerk (<i>name</i>): | |

- | h. <u>Party (<i>name</i>):</u> | Present | Attorney (<i>name</i>): | Present | Appointed
today |
|----------------------------------|--------------------------|---------------------------|--------------------------|--------------------------|
| (1) Child: | ☐ | | ☐ | ☐ |
| (2) Mother: | ☐ | | ☐ | ☐ |
| (3) Father—presumed: | ☐ | | ☐ | ☐ |
| (4) Father—biological: | ☐ | | ☐ | ☐ |
| (5) Father—alleged: | ☐ | | ☐ | ☐ |
| (6) Legal guardian: | ☐ | | ☐ | ☐ |
| (7) Indian custodian: | ☐ | | ☐ | ☐ |
| (8) De facto parent: | ☐ | | ☐ | ☐ |
| (9) County agency social worker: | ☐ | | ☐ | ☐ |
| (10) Tribal representative: | ☐ | | ☐ | ☐ |
| (11) Other (<i>specify</i>): | ☐ | | ☐ | ☐ |

- i. Others present in courtroom:
- (1) Court Appointed Special Advocate (CASA) volunteer (*name*):
- (2) Other (*name*):
- (3) Other (*name*):

3. The court has read and considered and admits the following into evidence:

- a. ☐ Report of social worker dated:
- b. ☐ Report of CASA volunteer dated:
- c. ☐ Case plan dated:
- d. ☐ Other (*specify*):
- e. ☐ Other (*specify*):



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BASED ON THE FOREGOING AND ON ALL OTHER EVIDENCE RECEIVED, THE COURT FINDS AND ORDERS:

4. a. ☐ Notice of the date, time, and location of the hearing was given as required by law.
- b. ☐ **For child 10 years of age or older who is not present:** The child was properly notified under Welf. & Inst. Code, § 349(d) of their right to attend the hearing, was given an opportunity to be present, and there is no good cause for a continuance to enable the child to be present.
5. **ICWA inquiry and status (check one):**
- a. ☐ The court and the agency have inquired as to whether the child is or may be an Indian child, and there is no reason to believe or reason to know the child is an Indian child. The agency has an affirmative and continuing duty of inquiry to determine whether the child is or may be an Indian child and report to the court on its inquiry efforts.
- b. ☐ There is reason to believe that the child is or may be an Indian child, and the agency is ordered to complete further inquiry to determine the child's Indian status and report to the court on the results of that further inquiry.
- c. ☐ There is reason to know the child is an Indian child, and notice of the proceeding and the right of the tribe to intervene was provided as required by law. Proof of such notice was filed with this court.
- d. ☐ The child is an Indian child and notice of the proceeding and the right of the tribe to intervene was provided as required by law. Proof of such notice was filed with this court.
6. ☐ The attorney appointed to represent the child as the child's attorney of record is also appointed as the child's Child Abuse Prevention and Treatment Act guardian ad litem.
7. ☐ a. The child will not benefit from representation by an attorney, and for the reasons stated on the record, the court finds
- (1) the child understands the nature of the proceedings;
 - (2) the child is able to communicate and advocate effectively with the court, other counsel, other parties, including social workers, and other professionals involved in the case; and
 - (3) under the circumstances of the case, the child would not gain any benefit from being represented by counsel.
- b. A Court Appointed Special Advocate is appointed for the child, and that person is also appointed as the child's Child Abuse Prevention and Treatment Act guardian ad litem.
8. ☐ A Court Appointed Special Advocate is appointed for the child.
9. The child's county of residence is:
10. The child's date of birth is (*specify*):

11. Parentage

- a. ☐ The court inquired of the child's parents present at the hearing and other appropriate persons present as to the identity and addresses of all presumed or alleged parents of the child. All alleged parents present during the hearing who had not previously submitted a *Statement Regarding Parentage (Juvenile)* (form JV-505) were provided with and ordered to complete form JV-505 and submit it to the court.
- b. ☐ The clerk of the court is ordered to provide the notice required by Welf. & Inst. Code, § 316.2 to
- (1) alleged parent (*name*):
 - (2) alleged parent (*name*):
 - (3) alleged parent (*name*):

Advisements and waivers

12. a. ☐ The petition was read to those present at the beginning of this jurisdictional hearing.
- b. ☐ Reading of the petition was waived by all those present at the beginning of this jurisdictional hearing.



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13. The court has informed and advised the

- ☐ mother ☐ biological father ☐ legal guardian ☐ child
☐ presumed father ☐ alleged father ☐ Indian custodian
☐ other (*specify*):

of the following:

- a. The right of the child and each parent, legal guardian, and Indian custodian to be present and to be represented by counsel at every stage of the proceedings. The court may appoint counsel subject to the court's right to seek reimbursement, if an individual is entitled to appointed counsel and the individual is financially unable to retain counsel.
- b. The right to be informed by the court of
 - the contents of the petition;
 - the nature of and possible consequences of juvenile court proceedings;
 - the reasons for the initial detention and the purpose and scope of the detention hearing if the child is detained;
 - the right to have a child who is detained immediately returned to the home of the parent, legal guardian, or Indian custodian if the petition is not sustained;
 - that if the petition is sustained and the child is removed from the care of the parent, legal guardian, or Indian custodian, the time for services will commence on the date the petition is sustained or 60 days from the date of the initial removal, whichever is earlier;
 - that the time for services will not exceed 12 months for a child aged three years or over at the time of the initial removal; and
 - that the time for services will not exceed 6 months for a child under the age of three years at the time of the initial removal or for the member of a sibling group that includes such a child if the parent, legal guardian, or Indian custodian fails to participate regularly and make substantive progress in any court-ordered treatment program.
- c. The right to a hearing by the court on the issues presented by the petition.
- d. The right to assert the privilege against self-incrimination; to confront and cross-examine the persons who prepared reports or documents submitted to the court by the petitioner and the witnesses called to testify against the parent, legal guardian; or Indian custodian; to subpoena witnesses; and to present evidence on his or her own behalf.

14. ☐ On the motion of the petitioner, the following allegations are stricken:

15. ☐ The ☐ mother ☐ biological father ☐ legal guardian ☐ child
☐ presumed father ☐ alleged father ☐ Indian custodian
☐ other (*specify*):

has knowingly and intelligently waived the right to a court trial on the issues, the right to assert the privilege against self-incrimination, the right to confront and cross-examine adverse witnesses, the right to subpoena witnesses, and the right to present evidence on one's own behalf.

16. ☐ The ☐ mother ☐ biological father ☐ legal guardian
☐ presumed father ☐ alleged father ☐ Indian custodian
☐ other (*specify*):

understands the nature of the conduct alleged in the petition and the possible consequences of his or her admission, plea of no contest, or submission.



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17. ☐ Party	Admits	Submits	Pleads no contest	To petition as amended on (specify date):
a. ☐ Mother	☐	☐	☐	
b. ☐ Presumed father	☐	☐	☐	
c. ☐ Biological father	☐	☐	☐	
d. ☐ Alleged father	☐	☐	☐	
e. ☐ Legal guardian	☐	☐	☐	
f. ☐ Indian custodian	☐	☐	☐	
g. ☐ Other (specify):	☐	☐	☐	

18. ☐ There is a factual basis for the admission.

19. ☐ By a preponderance of the evidence, the allegations stated below are true:

- a. ☐ as stated in the petition as originally filed.
- b. ☐ as stated in the petition as amended on (date):
- (1) ☐ by agreement of the parties.
- (2) ☐ by the court to conform to proof.

20. ☐ The allegations (specify):

as stated in the petition ☐ as amended on (date): are not proven and are ordered stricken.

21. ☐ The allegations of the petition are not sustained.

22. ☐ The petition is sustained under, and the child is a person described by, Welf. & Inst. Code, § 300 (check all that apply):

☐ 300(a)	☐ 300(c)	☐ 300(e)	☐ 300(g)	☐ 300(i)
☐ 300(b)	☐ 300(d)	☐ 300(f)	☐ 300(h)	☐ 300(j)

23. ☐ The previous disposition has not been effective in the protection of the child.

24. ☐ The county agency is ordered to immediately return the child to the

☐ mother	☐ biological father	☐ legal guardian
☐ presumed father	☐ alleged father	☐ Indian custodian
☐ other (specify):		

25. ☐ The child and the

☐ mother	☐ biological father	☐ legal guardian
☐ presumed father	☐ alleged father	☐ Indian custodian
☐ other (specify):		

are placed under the supervision of the county agency for a minimum of six months under their voluntary agreement to informal supervision and the provision of services designed to keep the family together as stated in the family's case plan.



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26. ☐ **Contact with the child is ordered as stated in** (*check appropriate boxes and attach indicated forms*)
- a. ☐ *Visitation Attachment: Parent, Legal Guardian, Indian Custodian, Other Important Person* (form JV-400).
- b. ☐ *Visitation Attachment: Sibling* (form JV-401).
- c. ☐ *Visitation Attachment: Grandparent* (form JV-402).

27. **All prior orders not in conflict with this order remain in full force and effect.**

28. ☐ **Other findings and orders:**

- a. ☐ See attached.
- b. ☐ (*Specify*):

29. ☐ **The next hearing is scheduled as follows:**

Hearing date:	Time:	Dept.:	Room:
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- a. ☐ Dispositional hearing
- b. ☐ Settlement conference
- c. ☐ Mediation
- d. ☐ Other (*specify*):

30. ☐ **The petition is dismissed.** Jurisdiction of the court is terminated. All appointed counsel are relieved of the duty to provide further representation.

31. Number of pages attached: _____

Date:

JUDICIAL OFFICER